

REPUBLIC OF LIBERIA, Appellant/Respondent, **v. JOHN P. ANDERSON**,
Appellee/Movant.

MOTION TO DISMISS APPEAL FROM THE CIRCUIT COURT FOR THE FIRST
JUDICIAL CIRCUIT, CRIMINAL ASSIZES, MONTSERRADO COUNTY.

Heard: October 16, 1979. Decided: December 20, 1979.

1. A motion to dismiss should be precise and certain so that the court may determine just what relief the moving party seeks, and it is no hardship to require of litigants substantial conformity to such a rule.
2. If the mistake, omission, defect or irregularity upon which a motion is based is not specified in the moving papers, such ground cannot be urged upon the motion, and in the absence of other valid grounds, the motion will be denied.
3. When a party seeks the benefit of a statute, he must plead facts to bring himself within its provisions and secure the benefit thereunder; in the instant case the appellee seeks to dismiss the appeal under the statute but failed to state facts sufficient to invoke the statute.

Appellee/movant filed a motion to dismiss an appeal growing out of a criminal case, but he merely recited the statutory grounds for dismissal of an appeal without stating any specific commission of acts or omission by the appellant/respondent to support the motion. The Supreme Court denied the motion for the failure of appellee/movant to state facts sufficient to bring himself within the provision of the statute and to benefit therefrom. The motion was therefore denied.

M. Fulton W. Yancy, Jr., and *Solicitor General E. Winfred Smallwood* appeared for appellant. *E. Wade Appleton* appeared for the appellee.

MRS. JUSTICE BROOKS-RANDOLPH delivered the opinion of the Court.

At the call of this case for hearing before this Bench, appellee/movant gave notice of the filing of a motion to dismiss appellant/respondent's appeal. We quote the motion hereunder:

“And now comes appellee in the above entitled cause, and most respectfully prays this Honourable Court to dismiss appellant’s appeal and showeth the following legal and factual reasons, to wit:

1. Because appellee says that appellant’s appeal should be dismissed because it grossly violates the statute extant as found in the Civil Procedure Law, Rev. Code 1: 24.7 and 24.9, respectively.

‘1) The following shall be necessary for the completion of an appeal:

- a) Announcement of the taking of the appeal;
- b) Filing of the bill of exceptions;
- c) Service and filing of the notice of the completion of the appeal.’

Failure to comply with any of the requirements stated in this paragraph within the time allowed by statute shall be ground for dismissal of the appeal.”

In five counts, appellant resisted the said motion on grounds that:

“A) Appellee has averred in count 1 of his motion two (2) statutory provisions as the basis of his application and contention namely: sections 24.7 and 24.9 of the Criminal Procedure Law, as are contained in 1 LCL Revised, at pages 388 and 389, respectively; yet, in the same one count motion for dismissal of appeal he recited a part of section 24.7, namely subparagraph 1 a), b) and c), without alleging any specific act or commission or omission on part of appellant to substantiate his application.

B) Further, that count 1 of the motion is defective and of no effect in that the averment of section 24.9 in said one count motion to dismiss the appeal fails and does not give appellant any notice of having acted in contravention of the statute cited or makes any reference as to the provision of the said statute.

C) That the provision of section 24.9 of the Criminal Procedure Law, requiring the appellant to serve copy of the notice of the completion of the appeal on the appellee is in conflict with the provision of service of processes in that the Civil Procedure Law provides at section 3.36, page 50, 1 LCL Revised, as follows: *Person who may serve:* The ministerial officer of the court which issued the process or his deputy or some person specifically appointed by the court. And in comparison with section 8.3(2) page 104, *person who may serve:* A person who may serve a summons under the provision of section 3.36 may serve any other paper required by law to be served. Appellant respectfully requests Your Honour to have the provisions relating to the service of the notice of the completion of the appeal reconciled in order that the matter may be finally settled.

D) That appellant further resisting the motion of the appellee to dismiss the appeal

say that the records of the trial court clearly show that the notice of the completion of the appeal was duly issued and signed by both parties litigant as shown by exhibit 'A.' The original thereto being on the file of the clerk of the Criminal Assizes Court.

E) That appeals before this Court are not denied merely on ground of lack of the service of the notice of the completion of appeal.”

It is an established principle of law that a party to a cause of action, may move to dismiss an appeal for failure of the other party to comply with statutory requirements governing appeals, but the motion should state the specific acts or omissions on which it is based. We now consider the manner in which the motion pending before this Court has been made.

As is argued by the appellant in his resistance to the motion, appellee has failed to allege any specific acts of commission or omission on part of appellant to substantiate his application. In essence, appellee's motion is simply a recital of the statutory provisions governing appeals, without specific enumeration of acts of appellant in violation of the statutory provisions.

The general principle of law governing motions is that a motion should be precise and certain so that the court may determine just what relief the moving party seeks, and it is no hardship to require of litigants substantial conformity to such a rule. 37 AM JUR. *Motions*, § 10.

It is also provided by law that if the mistake, omission, defect or irregularity upon which a motion is based is not specified in the moving papers, such ground cannot be urged upon the motion, and in the absence of other valid grounds, the motion will be denied. *Ibid.*

This Court has held that when a party seeks the benefit of a statute, he must plead facts to bring himself within its provisions and secure the benefit thereunder; otherwise he would be denied the benefits sought. *Bailey v. Sancea*, 22 LLR 59 (1973). In the instant case, the appellee sought to dismiss the appeal under the statute but failed to state facts sufficient to invoke the statute. In essence, the motion filed by the appellee fell short of this requirement and therefore the statute under which he sought to dismiss the appeal has not been invoked.

The Court under the circumstances cannot consider issues raised by the appellant in counts three to five of his resistance to the motion to dismiss the appeal.

In view of the foregoing, the motion to dismiss is denied. The Clerk of this Court is hereby instructed to docket this case for the ensuing term of Court for final determination. And it is so ordered.

Motion denied.